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File No.: EXP202211618

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by NANDIVALE, S.L. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated May 31, 2023, and based on the following

FACTS

FIRST: On May 31, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202211618, by virtue of which NANDIVALE, S.L. was imposed a fine of €10,000 (ten thousand euros) for an infringement of Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR.

This resolution, which was notified to the appellant on June 1, 2023, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (LOPDGDD), and subsidiarily under Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00008/2023, the following was recorded:

FIRST: The complainant, on October 23, 2022, filed a complaint with the Catalan Data Protection Authority, and on October 26, 2022, the aforementioned Authority referred the matter to the Spanish Agency for Data Protection as the competent authority. The complainant stated that she is the mother of a minor and that on August 7, 2022, she attended a birthday party organized at the premises of the respondent; she noted that, without the express consent of the parents of the attending children, images of the celebration were taken in which the minors appeared, subsequently published on the Instagram profile @mamaosacastelldefels as a "story"; as a consequence, she contacted the author of the publication through the messaging service provided by the service provider, in order to request that the publication be removed or that the faces of the minors be pixelated, without receiving a response while the publication remained available for 24 hours, which is the default duration for Instagram "stories."

SECOND: Screenshots from the Instagram account @mamaosacastelldefels have been provided, showing address, phone number, logo, and website where various photographs of the minors and parents at the celebration of a children's party can be observed.

THIRD: Screenshots of the children's party (4 photographs) and the following messages from the mother of the minor sent to the account mamaosacastelldefels are recorded:

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"Hello, I am one of the mothers who attended the birthday today. I did not give consent to upload images where my daughter appears. We did not even give consent for the recording of images, and to upload them you should have covered the faces of the minors. So I would ask you to either cover her face by re-uploading the videos or delete the stories where she is clearly identified. She is the girl on the right who is most visible. Thank you."

"Hello, I wrote to you before."

"I am copying what I wrote before."

Hello, I am one of the mothers who attended the birthday today. I did not give consent to upload images where my daughter appears. We did not even give consent for the recording of images, and to upload them you should have covered the faces of the minors. So I would ask you to either cover her

face by re-uploading the videos or delete the stories where she is clearly identified. She is the girl on the right who is most visible. Thank you. This may be the first time you are facing this situation, but capturing images of minors and uploading them to social media is classified as a crime with fines of up to 300,000 euros. I do not want images of my daughter on the internet.”

FOURTH: The respondent, in a letter dated January 31, 2023, stated, “It has always been the intention of 'Mamá Osa' to handle the personal data entrusted to it with the utmost guarantees, and it has been aware of the error that this situation entails, and it has proceeded to rectify this situation in a manner that complies with the requirements set forth by data protection regulations and, consequently, to be able to handle the data of the individuals who entrust them with the greatest guarantees, as has always been its intention.

FIFTH: The respondent submitted on January 5, 2023, a Risk Analysis in the Processing of Personal Data of Nanvidale, S.L., and subsequently on January 31, 2023, the Announcement Poster of Video Surveillance Zone in accordance with the GDPR and a Form for Information and Consent for the processing of personal data of Clients. Additionally, the Privacy Policy of the respondent has been submitted to the file.

THIRD: The appellant submitted on June 30, 2023, to this Spanish Agency for Data Protection, a recourse for reconsideration, basing it primarily on its disagreement with the resolution issued, as only aggravating circumstances were taken into account and not the concurrent mitigating circumstances in the present case, in addition to the measures adopted to prevent similar incidents from occurring again; the absence of the principle of proportionality in the imposition of the sanction, for which the amount should be reduced.

LEGAL GROUNDS

I

The Director of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123

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of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

The contested Resolution was based on the Legal Foundations from II to VI, both inclusive, as transcribed below:

“II

Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, in its Article 64 “Agreement to initiate sanctioning procedures,” provides:

“1. The initiation agreement shall be communicated to the instructor of the procedure, along with the transfer of any actions that exist in this regard, and shall be notified to the interested parties, understanding in all cases that the accused is included as such.

Likewise, the initiation shall be communicated to the complainant when the regulatory norms of the procedure so provide.

2. The initiation agreement must contain at least:

a) Identification of the person or persons presumably responsible.

b) The facts that motivate the initiation of the procedure, its possible qualification, and the sanctions that may correspond, without prejudice to what results from the instruction.

c) Identification of the instructor and, where appropriate, the Secretary of the procedure, with express indication of their recusal regime.

d) Competent body for the resolution of the procedure and the norm that attributes such competence, indicating the possibility that the presumed responsible party may voluntarily acknowledge their

responsibility, with the effects provided in Article 85.

e) Provisional measures that have been agreed upon by the competent body to initiate the sanctioning procedure, without prejudice to those that may be adopted during it in accordance with Article 56.

f) Indication of the right to submit allegations and to be heard in the procedure and the deadlines for exercising this right, as well as an indication that, in the event of not submitting allegations within the established deadline regarding the content of the initiation agreement, it may be considered a proposal for resolution when it contains a precise pronouncement regarding the attributed responsibility.

3. Exceptionally, when at the time of issuing the initiation agreement there are not sufficient elements for the initial qualification of the facts that motivate the initiation of the procedure, the aforementioned qualification may be carried out at a later stage by means of the preparation of a Statement of Charges, which must be notified to the interested parties."

In application of the previous provision and considering that no allegations have been made against the initiation agreement, it is appropriate to resolve the initiated procedure.

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III

The reported facts materialize in the taking of images of an event in which minors appear and their publication on the Instagram profile @mamaosacastelldefels as a "story," without the consent of their parents being accredited.

Article 58 of the GDPR, Powers, states:

"2. Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

i) impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case;

(...)"

It should be noted that the physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection, therefore, is subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

It is, therefore, necessary to analyze whether the processing of personal data (image of physical persons) carried out through the recording and dissemination, in which minors appear, on social networks is in accordance with the provisions of the GDPR.

Article 6, Lawfulness of processing, of the GDPR in its paragraph 1, establishes that:

"1. Processing shall be lawful only if at least one of the following conditions is met:

a) the data subject has given consent to the processing of their personal data for one or more specific purposes;

b) the processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;

c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;

d) the processing is necessary to protect the vital interests of the data subject or of another natural person;

e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

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The provisions in letter f) of the first paragraph shall not apply to the processing carried out by public authorities in the exercise of their functions.”

And Article 4 of the GDPR, Definitions, in its sections 1, 2, and 11, states that:

“1) ‘personal data’: any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

“2) ‘processing’: any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction;

“11) ‘consent of the data subject’: any freely given, specific, informed, and unambiguous indication of the data subject’s wishes by which they, by a statement or by a clear affirmative action, signify agreement to the processing of personal data relating to them.”

On the other hand, Article 92 of the LOPDGDD, Protection of minors' data on the Internet, states that:

“Educational centers and any natural or legal persons who carry out activities involving minors shall ensure the protection of the best interests of the minor and their fundamental rights, especially the right to the protection of personal data, in the publication or dissemination of their personal data through information society services.

When such publication or dissemination is to take place through social networks or equivalent services, they must obtain the consent of the minor or their legal representatives, in accordance with the provisions of Article 7 of this organic law.”

IV

It should be noted that the processing of data requires the existence of a legal basis that legitimizes it. In accordance with Article 6.1 of the GDPR, in addition to consent, there are other possible bases that legitimize the processing of data without the need for the authorization of its owner, in particular, when it is necessary for the performance of a contract to which the data subject is a party or for the implementation, at their request, of pre-contractual measures, or when it is necessary for the purposes of legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or fundamental rights and freedoms of the data subject which require the protection of personal data. Processing is also considered lawful when it is necessary for compliance with a legal obligation to which the data controller is subject, to protect vital interests of the data subject or of another natural person, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller.

In this case, the respondent regarding the processing of personal data, neither prior to nor subsequent to the infringement, nor in its Privacy Policy or in the Risk Analysis, provides for the processing carried out: disseminating or publishing images of celebrations on social networks.

Furthermore, regarding the publication of images, it is not specified where it is intended to take place (respondent's website, social networks, etc.), and concerning the consent mentioned in their response, nothing is stated about this specific processing, whether it collects consent from parents in the case of minors under 14 years old or whether it obtains consent from minors over 14 years old, distinguishing this age circumstance (It is also not stated in the case of adults whether their consent is obtained for the publication of their images, etc.).

Therefore, in the case examined, there is no accredited legal basis for the processing of minors' data.

V

The infringement attributed to the respondent is classified in Article 83.5 a) of the GDPR, which considers that the infringement of “the basic principles for processing, including the conditions for consent in accordance with Articles 5, 6, 7, and 9” is subject to sanction, according to paragraph 5 of

the aforementioned Article 83 of the cited Regulation, “with administrative fines of up to €20,000,000 or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount.”

The LOPDGDD in its Article 71, Infringements, states that: “Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements.”

And in its Article 72, it considers for the purposes of prescription, that they are: “Infringements considered very serious:

1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, those that constitute a substantial violation of the articles mentioned therein are considered very serious and will prescribe in three years, particularly the following:

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b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.

(...)

VI

In order to establish the administrative fine that should be imposed, the provisions contained in Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and

j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and detriment suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage and detriment suffered by the data subjects;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;

e) any previous infringements committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.

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In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, "Sanctions and corrective measures," establishes that:

"2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject."

- According to the transcribed provisions, for the purpose of determining the amount of the sanction for the infringement typified in Article 83.5.a) and Article 6.1 of the GDPR for which the respondent is held responsible, the following factors are considered concurrent as aggravating circumstances:

The categories of personal data affected by the infringement; it should not be forgotten that we are facing an infringement of a fundamental right aggravated by the category of data processed, as the image being disseminated is of minors (Article 83.2.g) of the GDPR).

The intentionality or negligence in the infringement. This circumstance is connected with the degree of diligence that the data controller is obliged to exercise in fulfilling the obligations imposed by data protection regulations; the SAN of 17/10/2007 can be cited, which, although issued before the GDPR came into force, is perfectly extrapolable to the case we are analyzing. The ruling, after referring to the fact that entities whose activities involve continuous processing of customer and third-party data must observe an adequate level of diligence, specified that "(...) the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence" (Article 83.2, b) of the GDPR).

III

The appellant has fundamentally argued the absence of the principle of proportionality in the imposition of the sanction, considering only the existence of aggravating factors and not taking into account the existence of mitigating circumstances that should have been considered, thereby reducing the amount of the sanction.

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However, it is obvious that the appellant has violated one of the basic principles of the regulations on data protection, for which it must be subject to sanction. On the other hand, the amount imposed has already been substantially reduced when considering the amounts indicated in Article 83.5 a) of the GDPR.

Regarding the principle of proportionality of sanctions, the A.N. in numerous rulings has indicated that the principle of proportionality cannot be exempt from judicial review, as the margin of appreciation granted to the Administration in imposing sanctions within the legally established limits must be developed by weighing, in any case, the concurrent circumstances, in order to achieve the necessary and due proportion between the alleged facts and the responsibility required, given that any sanction must be determined in accordance with the severity of the infringement committed and according to a criterion of proportionality in relation to the circumstances of the act. Thus, proportionality constitutes a

normative principle that is imposed on the Administration and that reduces the scope of its sanctioning powers.

Well, in accordance with the circumstances present in this case, the resolution does not violate the principle of proportionality in determining the imposed sanction, resulting in a balanced and proportionate response to the severity of the infringement committed, the importance of the facts, as well as the circumstances taken into account to grade the sanction, without any reasons being appreciated that further justify the reduction made, especially considering the amount to which such a sanction may rise in accordance with Article 83.5.b) of the GDPR, which provides for a maximum administrative fine of 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount.

Therefore, it is considered that the imposed sanction is balanced and proportionate to the severity of the facts highlighted in the contested resolution.

IV

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

Having seen the cited provisions and others of general application,

The Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by NANDIVALE, S.L. against the resolution of this Spanish Agency for Data Protection issued on 31/05/2023, in file EXP202211618.

SECOND: TO NOTIFY this resolution to NANDIVALE, S.L.

THIRD: To warn the sanctioned party that the imposed sanction must be enforced once this resolution becomes executive, in accordance with the provisions of the

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Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for

Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered concluded.

Mar España Martí

Director of the Spanish Agency for Data Protection

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